

Rajasthan Legislative Assembly Secretariat Right to Information Rules, 2007

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State of Rajasthan - Act

Rajasthan Legislative Assembly Secretariat Right to Information Rules, 2007

RAJASTHAN

India

Rajasthan Legislative Assembly Secretariat Right to Information Rules, 2007

Rule RAJASTHAN-LEGISLATIVE-ASSEMBLY-SECRETARIAT-RIGHT-TO-INFORMATION-RULES-2007 of 2007

Published on 23 August 2007

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Rajasthan Legislative Assembly Secretariat Right to Information Rules, 2007

Published vide Notification No. G.S.R. 48, dated 23.8.2007

Last Updated 23rd May, 2019 [1192]

G.S.R. 48. - In exercise of the powers conferred by section 28 of the Right to Information Act, 2005 (22 of 2005), Hon'ble the Speaker, being the competent authority for Rajasthan / Legislative Assembly Secretariat, hereby makes the following rules for providing information pertaining to the Rajasthan Legislative Assembly.

1.

Short title and commencement.

- (i) These rules may be called the Rajasthan Legislative Assembly Secretariat Right to Information Rules, 2007.

(ii)

These rules shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- (i) In these rules unless the context otherwise requires:

(a)

"Act" means the Right to Information Act, 2005.

(b)

"Commission" means the Rajasthan State Information Commission constituted under section 15 of the Act.

(c)

"Form" means forms appended to these rules.

(d)

"Fees" means fees prescribed under Rule 5.

(ii)

The words and expressions used but, not defined in these rules shall have the same meaning as assigned to them in the Act.

3.

Application for obtaining information.

(1)

A person who desires to obtain information pertaining to the Rajasthan Legislative Assembly Secretariat shall make an application in writing in Form A or through electronic means to the Public Information Officer accompanying with the fees prescribed under Rule 5:

Provided that where a person applying through electronic means, shall have to pay the fees within seven days from the date of application, failing which the application shall be treated as withdrawn.

(2)

The Public Information Officer on receipt of application shall give the receipt of the application in Form B to the applicant.

(3)

The Public Information Officer shall inform the Applicant in Form C regarding such further fees or charges to be paid by him under Rule 5 for the purpose of information sought for by him.

(4)

The fees and charges payable under Rule 5 shall be paid either in cash or by Demand Draft or by Pay order or Indian Postal Order :

Provided that no fees and charges shall be payable by a person belonging to the Below Poverty Line families, if such person submits with the application a certified copy of the Below Poverty Line card prevailing at that point of time or a Certificate issued in this behalf by the competent authority.

4.

Disposal of the Application.

(1)

The Public Information Officer shall provide information sought for on payment of further such fees or charges as provided in Rule 5 to the applicant within 30 days of the receipt of the request in Form D or inform the applicant about the rejection of application in Form F stating the reasons or grounds as provided under sections 8 and 9 of the Act.

(2)

In case where the information sought for does not fall within the jurisdiction of the Public Information Officer of Rajasthan Legislative Assembly Secretariat, he shall transfer such application in Form E to the concerned Public Information Officer of such authority within five days of the receipt of the application and inform the applicant immediately about such transfer:

Provided that where the information sought for concerns with the life or liberty of a person, the Public Information Officer shall be required to provide such information within 48 hours of the receipt of such request or application.

5.

Rates of Fees.

- The Rates of Fees and other charges for obtaining required information and documents shall be as under:

A. Application

Fees:

Rs. 10/- per application.

B. Other fees and charges:

Sr. No.

Details of Information Required

Price in Rupees

1.

Any information available in the form of publication.

Actual price of publication.

2.

Other Information/Documents:

(a) Information provided in:

(i) A4, A3 size paper

Rs. 2/- per page

(ii) Larger size paper

Amount of actual cost.

(b) For sample, model or photographs

Amount of actual cost.

(c) For inspection of records

No fees for the first-hour and a fee of Rs.

5/- for each fifteen minutes of fraction thereof, thereafter.

(d) For information to be furnished in floppy or a disc, wherever possible.

Rs. 50/- per floppy/disc.

6.

Contents of Appeal.

(1)

Any person aggrieved by the decision of the Public Information Officer or any person who does not receive any decision within the time specified in sub-section (2) of section 7 of the Act, as the case may be, may prefer an appeal in Form G within 30 days from the date of receipt or non receipt of such decision, to the Appellate authority designated by the Speaker in this behalf.

(2)

The appellant aggrieved by any order of the Appellate Authority under sub-rule (1) may prefer second stage appeal to the Rajasthan State Information Commission within 90 days from the date of the receipt of the order of the Appellate authority giving the following details:

(i)

Name and address of the appellant

(ii)

Name and address of the State Public Information Officer.

(iii)

Number, date and details of the order against which the second appeal is filed.

(iv)

Brief facts leading to the second appeal.

(v)

Verification by the appellant.

(vi)

Any information which the Commission may deem necessary for deciding the appellant.

(3)

Every appeal made to the Commission shall be accompanied by the attested true copy of the order against which

second appeal is preferred and copies of the other documents referred to and relied upon by the appellant along with a list thereof.

7.

Maintenance of Records.

- The Public Information Officer under the superintendence and direction of the Speaker shall maintain all the records in respect of the applications received for information and the fees collected for giving the information.

8.

Miscellaneous.

- For the purpose of removing any doubt it is hereby clarified that the forms as prescribed under these rules need not be in authorized pre-printed stationery, but any format neatly typed, handwritten or in electronic form which covers essential details in the form shall be valid.

Form-A

[See Rule 3(1)]

Application form for obtaining information

To

The Publication Information Officer,

Rajasthan Legislative Assembly Secretariat,

Jaipur.

1. Name of the applicant:

2. Full Address :

3. Particulars of Information required (In brief);

4. I, hereby, state that the information sought for is not covered under the categories which are exempted from disclosure of information under section 8 or under section 9 of the Right to Information Act, 2005 and to the best of my knowledge, it is pertaining to your Secretariat.

5. *(1) I hereby submit the prescribed application fee of Rs..... (in words rupees.....) vide payment of application fee receipt No..... dated..... of your secretariat.

*(2) I enclose herewith Demand Draft/Pay order/Indian Postal Order No..... dated..... drawn in favour of Secretary, Rajasthan Legislative Assembly Secretariat, issued by (Name) (Bank) towards the fees payable.

*(3) I belong to B.P.L. family, Xerox copy of my Card/Certificate is enclosed herewith.

Place:

Date :

Signature of applicant

e-mail address, if any

Telephone No. (Office)

(Residence)

N.B. - Person belonging to B.P.L. family need not pay any type of fees.

*Strike out whichever is not applicable.

Form-B

[See Rule 3(2)]

Receipt of an application

From: -

The Public Information Officer,

Rajasthan Legislative Assembly Secretariat,

Jaipur.

Receipt. No. Date

1. Received the application dated in Form A, prescribed under sub-rule (2) of Rule 3 of the Right to Information Rules, 2005 from Shri/Smt./Kum resident of.....

2. The information shall be provided within 30 days. In any case, if it is found that it is not possible to give the required information, a letter showing reasons thereof or rejecting the request shall be issued.

3. The applicant may contact the undersigned during 11.00 a.m. to 1.00 p.m. on dated(here mention the date not later than thirty days from the date of the receipt of an application.)

4. In case of failure to remain present on the stipulated date by the applicant, the Public Information Officer shall not be held responsible for delay in providing information.

5. The applicant shall be required to deposit the outstanding amount of fees or charges, if any, prior to collection of the information or the documents.

Public Information Officer

Rajasthan Legislative Assembly Secretariat.

Telephone No.

e-mail:

Website:

Form-C

[See Rule 3(3)]

Intimation to applicant to deposit fee and charges for required information and documents

To,

Shri/Smt./Kum.....

Address:.....

.....

Sir/Madam

With reference to your request/application dated (Receipt No..... dated.....) I am to state that you are required to deposit Rs..... (in words Rupees..... only) for required information and documents sought for. It is requested to obtain the copies of the required information/documents after depositing the amount in Rajasthan Legislative Assembly Secretariat.

1.

Total No. of pages x Rs. 2 per page (A3, A4 size)

Rs. =

2.

Total No. of Large size pages except (A3, A4 size)

Rs. =

3.

Floppy/disc charges x Rs. 50 per piece

Rs. =

4.

Charges for inspection of record.....

Rs. =

5.

Charges for sample/Model

Rs. =

Total Rs. =

Yours faithfully,

()

Rajasthan Legislative Assembly Secretariat

Telephone No.

e-mail :

Website :

Form-D

[See Rule 4(1)]

Supply of Information to the applicant

From:

The Public Information Officer,

Rajasthan Legislative Assembly Secretariat,

Jaipur

To,

Shri/Smt./Kum.....

Address :.....

.....

Sir,

1. This is with reference to your application dated.....(Receipt No..... dated.....) requesting for supply of information.

*2. Details of required information are enclosed herewith.

*3. Out of the required information sought for, the partial information is supplied as under

(1)

(2)

(3)

(4)

*4. With reference to your request for supplying information, the following information/documents cannot be supplied for the following reasons

(1)

(2)

(3)

(4)

5. If you are aggrieved by the above decision, you may prefer an appeal to the Appellate authority (Secretary), Rajasthan Legislative Assembly Secretariat, Jaipur within thirty days from date of receipt of the decision.

6. The information whichever is given to you is as a member of Below Poverty Line families and shall not be used for any other purpose.

Yours faithfully,

()

Rajasthan Legislative Assembly Secretariat

Telephone No.

e-mail:

Website :

* Strike out whichever is not applicable.

Form-E

[See Rule 4(2)]

Transfer of application pertaining to other authority.

From :

The Public Information Officer,

Rajasthan Legislative Assembly Secretariat,

Jaipur.

No.....Dated.....

To

P.I.O.

Address:.....

:

Sir,

Please find enclosed herewith an application from Shri date Receipt No. for reasons stated below:

Required information does not fall within the jurisdiction of this Secretariat. As it falls within the jurisdiction of your Department/Office, the same is transferred herewith to you for further necessary action.

It is certified that the applicant has paid Rs. (Rupees.....only) on account of fees/charges for obtaining required information, which has been credited in the Government treasury/account.

Yours faithfully,

()

Rajasthan Legislative Assembly Secretariat

Telephone No.

e-mail :

Website :

Copy to

Shri/smt./Kurn.....

(Applicant)

1. As your application pertaining to required information doesn't fall within the jurisdiction of this Secretariat, it has been transferred to the Public Information Officer having jurisdiction, you are requested to contact the Public Information Officer mentioned above.

Form-F

[See Rule 4(1)]

Order of rejection of Information

From:

The Public Information Officer,

Rajasthan Legislative Assembly Secretariat,

Jaipur.

No..... dated.....

To

Shri/Smt./Kum.....

Address:

Sir,

With reference to your application dated:..... Receipt No..... requesting for supply of information, I am to state that the information requested cannot be provided for the following reasons:

(i)

The information requested falls within the exempted categories under sub sectionof section 8 or under section 9 of the Act.

(ii)

If you are aggrieved by the above decision, you may prefer an appeal to the Secretary, Rajasthan Legislature Secretariat, Jaipur, within thirty days from the date of receipt of the decision.

Yours faithfully,

()

Rajasthan Legislative Assembly Secretariat

Telephone No.

e-mail :

Website :

Form-G

[See Rule 6(1)]

Form of First Appeal

Receipt No.

Date

(For office use)

To,

The Appellate Authority,

Rajasthan Legislative Assembly Secretariat,

Jaipur.

Sir,

As I have not received any decision/As I am aggrieved by the decision of the Public Information Officer, Rajasthan Legislative Assembly Secretariat, I hereby file this appeal. The Particulars of my application is as under:

1. Name of the Appellant

2. Address of Appellant

(A)

Name of the Public Information Officer :

Address of Public Information Officer :

(B)

Department/Officer and address:

(C)

Particulars of the decision against which the Appeal is preferred including the No. & date of such decision.

4. Date of application submitted in the form A

5. Details of information:

(A)

Information asked for:

(B)

Period for which information is sought.

6. Date as on completion of 30 days after submitting Application in Form A

7. Reasons for Appeal:

(A)

No decision is received within 30 days of submission of application in Form A

(B)

Aggrieved by the decision of Public Information Officer dated:

8. Ground of appeal, brief facts of the case.

9.

Last date for filing the appeal:

10.

Prayer/Reliefs sought for:

I hereby state that the information and particulars given above are true to the best of my knowledge and belief.

Place

Date

Name of appellant

Signature of appellant

e-mail address, if any

Telephone No. (Office)

(Residence)

.....(cut from here).....

From:

Public Information Officer

Rajasthan Legislative Assembly Secretariat,

Jaipur.

Receipt No.

Date:

1. Received an app al application of Shri a resident of in form G prescribed under sub- rule (1) of Rule 6 of the Rajasthan Legislative Assembly Right to Information Rules, 2007.

Signature of the receipt Clerk

Office of the Appellate

Authority

Telephone No.

E-mail

Website.

Related AI tags, queries and research notes

Translation